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| CASE ID | JURISDICTION | GENERATED |
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| golden-money-claim-001 | england | 1 May 2026 |

# Money Claim Filing Guide

*Practical steps for issuing your England money claim for rent arrears and related losses.*

## Overview of your claim

| | |
| --- | --- |
| **Claim type:** | Money claim for rent arrears and additional losses |
| **Claim amount:** | £2945.44 |
| **Court fee:** | £205.00 |
| **Total at issue:** | £3150.44 |

## Before you file

### Checklist before issue

- **Sent a Letter Before Claim** and allowed the defendant at least 30 days to respond
- **Included the Information Sheet and Reply Form** with that letter
- **Considered any reply, payment proposal, or request for documents** before issuing the claim
- **Checked the figures** in the Particulars of Claim, arrears schedule, and interest calculation
- **Gathered the documents you may need to rely on** such as the tenancy agreement, ledger, bank statements, invoices, and photographs
- **Made sure the defendant name and address are correct** on every document in the pack

**Important:** If the pre-action letter has not gone out properly, or 30 days have not passed, sort that out first. The court can take a poor view of claims that skip the debt protocol.

## How to issue the claim

You have **two main ways** to issue a money claim in England:

1. **Online through Money Claim Online (MCOL)** where the claim is suitable for online issue
2. **By post to the County Court Money Claims Centre** if you prefer a paper route or the claim needs it

## Option 1: File online through MCOL

### Why landlords usually choose MCOL

- **Lower court fee:** usually cheaper than paper issue
- **Faster issue:** claims are often processed more quickly
- **Clear online tracking:** easier to follow updates on the case
- **Simpler follow-up steps:** some judgment and enforcement requests can also be made online

- **Available at any time:** useful if you want to prepare the filing outside court-office hours

## Step by step: issuing through MCOL

### Step 1: Create your account

1. Go to www.moneyclaim.gov.uk
2. Register for an account
3. Keep your login details safe so you can return to the claim later

### Step 2: Start a new claim

1. Log in to MCOL
2. Choose the option to make a new money claim
3. Select the claimant type that matches you or your business

### Step 3: Enter claimant details

Use the same claimant details that appear elsewhere in the pack:

| | |
|---|---|
| **Claimant name:** | Alice Landlord |
| **Address:** | 1 High Street London |
| **Postcode:** | E1 1AA |
| **Email:** | alice@example.com |
| **Telephone:** | 02070000001 |

### Step 4: Enter defendant details

Use the defendant name and address consistently across the claim form, particulars, and covering documents:

| | |
|---|---|
| **Defendant name:** | Tom Tenant |
| **Address:** | 2 High Street London |
| **Postcode:** | E1 2BB |

### Step 5: Enter the amount claimed

**Important:** MCOL expects amounts as numbers only, with no pound sign. Enter `2945.44`, not "£2945.44".

| | |
|---|---|
| **Claim amount:** | `2945.44` |
| **Court fee:** | £205.00 *(usually calculated by MCOL)* |

### Step 6: Add the brief details of claim

MCOL only gives a short box for the headline summary. Keep it aligned with the full Particulars of Claim and always finish with **"Particulars of Claim attached"**.

**Copy this wording:**

```
Claim for unpaid rent and property damage relating to tenancy at 2 High Street London. The
defendant occupied the property under an assured shorthold tenancy commencing 1 January 2024.
Rent was £950.00 monthly. The defendant failed to pay rent as it fell due, resulting in
arrears of £2430.00. The defendant also caused damage beyond fair wear and tear, totalling
£380.00. Interest is claimed under section 69 County Courts Act 1984 at 8% per annum.
Particulars of Claim attached.
```

*Tip: copy the wording above directly into MCOL so the short summary stays consistent with the formal particulars in this pack.*

### Step 7: Attach the supporting documents

1. Attach the **Particulars of Claim** from this pack
2. Attach the **Schedule of Arrears**
3. Attach the **Interest Calculation**

**Note:** online attachment limits apply. If you need to upload several documents, combine them into one clear PDF bundle.

### Step 8: Review the statement of truth

Read the statement carefully before you confirm it. The court expects the online claim, the particulars, and the supporting figures to match.

### Step 9: Pay and issue the claim

1. Check the claim summary one last time
2. Pay the court fee
3. Submit the claim

Once the claim is issued, keep the claim number, the sealed claim form, and any email confirmation with the rest of your pack.

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## Option 2: File by post

## When paper filing may be the better route

- If you prefer a paper file
- If online issue is not suitable for the claim
- If the claim is over £100,000 or otherwise outside the MCOL route

## Step by step: filing by post

### Step 1: Print the claim form

1. Print the completed **Form N1** from this pack
2. Keep a clean copy for your records
3. Do not alter the official form layout

### Step 2: Print the supporting papers

Keep the paper file in a clear order:

1. Particulars of Claim
2. Schedule of Arrears
3. Interest Calculation
4. Tenancy agreement
5. Ledger or bank statements
6. Photographs, invoices, or quotes supporting the damage claim

**Tip:** keep the bundle neat and secure. A stapler or treasury tag is better than loose papers.

### Step 3: Check the court fee

Your claim amount is **£2945.44**, so the court fee is **£205.00**.

Court fees vary by claim value:

| Claim Amount | Court Fee (Online) | Court Fee (Paper) |
|---|---|---|
| Up to £300 | £35 | £35 |
| £300.01 to £500 | £50 | £50 |
| £500.01 to £1,000 | £70 | £80 |
| £1,000.01 to £1,500 | £80 | £115 |
| £1,500.01 to £3,000 | £115 | £205 |
| £3,000.01 to £5,000 | £205 | £455 |
| £5,000.01 to £10,000 | £455 | £680 |
| £10,000.01 to £200,000 | 5% of claim value | 5% of claim value |

### Step 4: Pay the fee

You can usually pay by:

- **Cheque** payable to "HM Courts & Tribunals Service"
- **Postal order** payable to "HM Courts & Tribunals Service"

**Do not send cash.**

### Step 5: Send the pack

Send the claim to:

> **County Court Money Claims Centre**
> PO Box 527
> Salford
> M5 0BY

Use a tracked postal method so you can prove when the claim was sent.

### Step 6: Wait for issue

After receipt, the court will usually:

1. Check the papers
2. Issue the claim and assign a claim number
3. Serve the claim on the defendant
4. Send a Notice of Issue

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## What happens after issue

### Typical timeline

| Stage | What usually happens |
|---|---|
| **Issue and service** | The claim is issued and served on the defendant |
| **Within 14 days** | The defendant may pay, admit the claim, defend it, or acknowledge service |
| **After 14 days** | If there is no response, you may be able to request default judgment |
| **After acknowledgment** | The defendant usually has up to 28 days from service to file a defence |

### Likely outcomes

1. **The defendant pays in full** and the claim can be brought to an end
2. **The defendant does not respond** and you can ask for default judgment
3. **The defendant admits the claim but asks to pay by instalments** and you can decide whether to accept the proposal
4. **The defendant files a defence** and the court gives directions for the case to move on

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## If judgment is entered but payment still does not follow

If you obtain judgment and the defendant still does not pay, the next step is enforcement.

- **Warrant of Control** if the defendant has goods worth seizing
- **Attachment of Earnings** if the defendant is in employment

- **Third Party Debt Order** if you know where money is held for the defendant
- **Charging Order** if the defendant owns property

Use the **Enforcement Guide** in this pack to decide which route best matches the defendant's circumstances.

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## Help and support

- **MCOL Help:** 0300 123 1057
- **County Court Money Claims Centre:** 0300 123 1372
- **HMCTS guidance:** www.gov.uk/make-money-claim

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*This guide is practical support for issuing the claim. If the matter becomes defended or more complex, independent legal advice may still be worth taking.*

*Generated on 1 May 2026 • Document reference: golden-money-claim-001*